

		Thus, the Court orders Plaintiffs to file the memorandum and declaration(s) that were timely served on Defendants <i>prior to the hearing on this Motion</i>.
4.	2026-1558154 BP Holdings RHO LLC vs. Duan	The Court grants Plaintiff BP Holdings RHO LLC's Motion pursuant to Code of Civil Procedure Section 425.16 subdivision (g) for leave to conduct discovery relevant to Plaintiff's oppositions to Defendant Sinan Duan's Special Motion to Strike (Anti-SLAPP) filed 5/14/26 and Defendant Crystal Chen's Motion to Expunge Lis Pendens (filed 4/23/26), as set forth below. <u>Request for Judicial Notice</u> Defendant's unopposed request to judicially notice his Petition for Dissolution of Marriage in the Orange County Superior Court, Case No. 20D001282, on February 14, 2020, filed by Duan, is granted. <u>Legal Standard</u> Unless the court orders otherwise for "good cause shown," all discovery proceedings shall be stayed upon filing of a notice of motion under CCP § 425.16. The stay remains in effect until notice of entry of order ruling on the motion. (CCP § 425.16(g); <i>see Britts v. Sup.Ct. (Berg & Berg Enterprises, LLC)</i> (2006) 145 Cal.App.4th 1112, 1129—court has no inherent power to rule on pending discovery motion or to allow discovery while anti-SLAPP motion pending, absent a noticed motion under CCP § 425.16(g).) Because a CCP § 425.16 motion may be made within 60 days after service of the complaint (and must be heard within 30 days thereafter), plaintiff may need additional discovery to oppose defendant's motion. If so, it must move for an order allowing such discovery (and, if necessary, a continuance of the hearing). It cannot merely oppose the motion for lack of opportunity to obtain such information. (<i>Lafayette Morehouse, Inc. v. Chronicle Publishing Co.</i> (1995) 37 Cal.App.4th 855, 867; <i>Robertson v. Rodriguez</i> (1995) 36 Cal.App.4th 347, 357.) "Good cause" is required for discovery while an anti-SLAPP motion is pending. (CCP § 425.16(g).) To satisfy this requirement, plaintiff must explain what additional facts it expects to uncover and why the discovery is necessary to carry its burden on the anti-SLAPP motion. "Conclusory comments by counsel that the evidence requested ... would somehow 'fill' unspecified evidentiary gaps was not a sufficient explanation." (<i>Six4Three, LLC v. Facebook, Inc.</i> (2025) 109 Cal.App.5th 635, 659.)

Further, plaintiff must make a prima facie showing at least as to the elements of the claim for which no discovery should be needed. (*Paterno v. Sup.Ct. (Ampersand Publishing)* (2008) 163 Cal.App.4th 1342, 1349.)

If discovery is allowed, it will be limited to the issues raised by the anti-SLAPP motion; i.e., matters that may help plaintiff establish a “reasonable probability of prevailing” on the claim, rather than merely matters to impeach defendant's credibility. (*Sipple v. Foundation for Nat'l Progress* (1999) 71 Cal.App.4th 226, 247.)

Even if good cause exists for discovery on some element of the prima facie case, discovery may be refused if there is no reasonable probability the court will ever reach that issue. (*Garment Workers Ctr. v. Sup.Ct. (Fashion 21, Inc.)* (2004) 117 Cal.App.4th 1156, 1162—error to allow discovery on malice element of malicious prosecution claim where alleged falsity of publications could be resolvable as matter of law, obviating need for discovery; *Tutor-Saliba Corp. v. Herrera* (2006) 136 Cal.App.4th 604, 618—court properly refused to allow discovery necessary to establish prima facie case of defamation where alleged defamation was absolutely privileged.)

Merits

Plaintiff asks for leave to conduct specific discovery from Defendants prior to the deadline to file the opposition to the Anti-SLAPP motion. “Good cause” is required for discovery while an anti-SLAPP motion is pending. (CCP § 425.16(g).)

As set forth above, to satisfy this requirement, plaintiff must explain what additional facts it expects to uncover and why the discovery is necessary to carry its burden on the anti-SLAPP motion.

In opposition, Defendant argues that the argument in the Anti-SLAPP motion is that the litigation privilege bars the Complaint in this case, so discovery is irrelevant to the issues raised.

However, the litigation privilege does not necessarily bar a claim for violation of the Uniform Voidable Transactions Act (UVTA) (§ 3439 et seq.).

“The purpose of the UVTA is to prevent debtors from placing, beyond the reach of creditors, property that should be made available to satisfy a debt.” (*Chen v. Berenjian* (2019) 33 Cal.App.5th 811, 817.) In furtherance of the state's “general policy of protecting creditors from fraudulent transfers, including transfers between spouses,” the UVTA applies to property transfers made

pursuant to a marital settlement agreement incorporated into a judgment of dissolution. (Mejia v. Reed (2003) 31 Cal.4th 657, 668, 3 Cal.Rptr.3d 390, 74 P.3d 166.)

Whether a debtor had the actual intent to hinder, delay, or defraud a creditor is a question of fact. (*Nautilus, Inc. v. Yang* (2017) 11 Cal.App.5th 33, 40; *Annod Corp. v. Hamilton & Samuels* (2002) 100 Cal.App.4th 1286, 1294.)

To state a cause of action for fraudulent transfer under section 3439.04, subdivision (a)(1), they are not required to allege that Shahan failed to receive a reasonably equivalent value for the properties he transferred; it is sufficient to allege that the defendant made the transfer “with ‘actual intent to hinder, delay, or defraud any creditor of the debtor.’” (*Optional Capital, Inc. v. DAS Corp.* (2014) 222 Cal.App.4th 1388, 1401.)

Chen v. Berenjian (2019) 33 Cal.App.5th 811 is instructive.

“Under the UVTA, it is the *transfer* made or the obligation incurred by the debtor which, when made with the requisite intent or without sufficient consideration, is wrongful and, therefore, voidable. [Citation.] Thus, the acts causing injury to Chen were the agreement to defraud him and the transfer of the [property] from Shazad to Sharmad by means of executing on [Sharmad's] judgment. The acts of filing the sham complaint and agreeing to the stipulated judgment, though communicative in nature, were not the gravamen of Chen's fraudulent transfer cause of action.... [Sharmad's] levy was the allegedly voidable transfer producing the injury and was, therefore, the gravamen of the cause of action for fraudulent conveyance.”

(*Chen*, at p. 821.)

Levying on property as part of a scheme to defeat a creditor's rights in violation of the UVTA is not communicative conduct; therefore, extending the litigation privilege to such conduct advances none of the privilege's purposes. [¶] The UVTA serves the valuable purpose of protecting creditors from schemes to place assets beyond their reach.” (*Chen, supra*, 33 Cal.App.5th at pp. 821–822.) The court concluded that if it extended the litigation privilege to the facts alleged by Chen, it “would be providing a road map to circumventing the UVTA and defeating the rights of creditors.” (*Id.* at p. 822.)

Thus, the Court in *Chen, supra*, held that the litigation privilege did not bar the Complaint. (See also *Aghaian v. Minassian* (2020) 59 Cal.App.5th 447, 458, court held that a sham dissolution proceeding

and stipulated judgment was not barred by the litigation privilege because the conduct was not communicative.)

For purposes of this Motion, the Court looks to the second step of the Motion to decide the issue of minimal merit. “Once the court determines the first prong of the statute has been met, a plaintiff must provide the court with sufficient evidence to permit the court to determine whether ‘there is a probability that the plaintiff will prevail on the claim.’ (CCP § 425.16, subd. (b)(1).)” (*DuPont Merck Pharmaceutical Co. v. Superior Court* (2000) 78 Cal.App.4th 562, 568.)

Here, if Plaintiff establishes in its opposition that the fraudulent transfer claims have minimal merit, then *Chen, supra*, 33 Cal.App.5th 811 and *Aghaian, supra*, 59 Cal.App.5th 447 are persuasive authority that the litigation privilege would not bar Plaintiff’s claims asserted here.

Thus, the Court finds that Plaintiff has shown good cause.

The final issue is the scope of the discovery. Plaintiff asks for the following discovery:

1. Duan RFPs re: financial condition and income – Plaintiff wants tax returns, bank statements, income records for 2022-2026
2. Duan and Chen RFPs re: negotiation of Marital Settlement Agreement - Drafts, emails, text messages between counsel
3. Communications between Duan and Chen - Text messages, emails
4. Subpoena to Blonska (Duan’s divorce attorney) - File, communications, billing records
5. Subpoena to Shaw/Salisbury (Chen's divorce attorney) - File, communications, billing records
6. Defendants’ depositions

In response, Defendant argues that seeking the client files should not be permitted because they are protected by the attorney-client privilege / work product documents.

While this is likely true, Plaintiff can propound the limited discovery seeking the above-delineated documents and testimony, opposing parties and third-parties can object as necessary. After a meet and confer effort, the matters can be submitted to the Court for adjudication if needed.

Thus, the Motion is granted.

		Plaintiff shall conduct new, limited discovery as delineated above. The Court continues the hearing on the Anti-SLAPP and the Motion to expunge lis pendens until January 20, 2027. Opposition and reply deadlines will be per code tracking the new hearing date. Plaintiff shall serve notice of this Order.
5.	2024-1404974 SINGSON vs. JAGUAR LAND ROVER NORTH AMERICA, LLC	Plaintiff Daisy Singson's motion for attorney fees and costs against Defendant Jaguar Land Rover North America, LLC is granted in part as set forth below. Plaintiff is awarded fees in the total amount of \$42,134.18. Plaintiff obtained a settlement against Defendant for the repurchase of her vehicle. Based on this, Plaintiff seeks attorney fees in the amount of \$52,567.86 plus a 1.2 multiplier for a total of \$62,130.08. It is within the court's discretion to decide which of the hours expended by the attorneys were "reasonably spent" on the litigation. (<i>Meister v. Regents of University of California</i> (1998) 67 Cal.App.4th 437, 449.) Additionally, a trial court has broad discretion to determine the amount of reasonable attorney's fees, as an experienced trial judge is in the best position to decide [the] value of professional services rendered in court. (<i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4th 1084, 1095.) In challenges to the reasonableness of the number of hours billed, "it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence." (<i>Premier Med. Mgmt. Sys., Inc. v. Cal.Ins. Guarantee Ass'n</i> (2008) 163 Cal.App.4th 550, 564.) "General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (<i>Id.</i>) Plaintiff's counsel's billing rates ranged from \$430-\$625. (Diamse Decl., ¶ 76.) Based on the billing records (Ex. A), there were very few entries reflecting rates of over \$500. The Court thus finds that Plaintiff's counsel's rates are reasonable, especially given the allocation of work noted above. In determining this, the Court took into account the relative experience of counsel, the legal questions presented, nature of Plaintiff's claims, and skill of representation. Based on counsel's billing statements, the Court finds that \$42,134.18 is a reasonable amount of attorney fees in this matter and awards this amount.